WILLIAM NENGWEKURU
versus
COMMISSIONER GENERAL OF POLICE N.O.
and
POLICE SERVICE COMMISSION N.NO.

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 5 and 11 February 2026

Application for Review

N. Mugiya, for the applicant
W. R. Jaure, for 1st and 2nd respondents

MAMBARA J:

Background:

[1] The applicant, William Nengwekuru, is a former member of the Zimbabwe Republic Police. He filed this application seeking a review of the decision by the first respondent (the Commissioner-General of Police) and the second respondent (the Police Service Commission) dismissing his internal appeal against his discharge from the police service. The application is opposed, but before turning to the substance of the case, a preliminary point in limine was raised on behalf of the applicant.

Preliminary Objection

[2] *Mr. Mugiya*, for the applicant, argued that the respondents' opposing affidavit is fatally defective because it was commissioned by Mr. Fanuel Kapasura, a legal practitioner employed by the first respondent. It is common cause that Mr. Kapasura, as a police legal officer, is an interested party in these proceedings. The issue is whether an affidavit commissioned by a person with such an interest is admissible. The legal position is well-established: an affidavit must be attested by a Commissioner of Oaths who is impartial and has no interest in the matter. As authoritative texts and case law confirm, an affidavit sworn

before one's own lawyer or an employee of the party's legal team will not be admitted by the court. Herbstein and Van Winsen's Civil Practice (Superior Courts) underscores that the commissioner of oaths should be independent of the office preparing the affidavit, and it is improper for an attorney (or their employee or partner) acting for a litigant to administer the oath for that litigant's affidavit. In *Hersman v Angilley 1936 CPD 386*, for example, an affidavit taken before a partner of the firm acting for the deponent was refused as evidence on this basis.

[3] In our jurisdiction, the same principle has been applied. In *Central African Building Construction Co. (Pvt) Ltd* v *Construction Resources Africa (Pvt) Ltd* HH 112-10, GOWORA J emphasized that a legal practitioner must at all times retain independence in relation to the client's case and should avoid any conduct aligning himself too closely with the client's cause. And in *Chafadza* v *Edgars Stores Ltd & Anor* 2005 (1) ZLR 299 (H), Cheda J observed that it is "highly undesirable" for a lawyer from the firm representing a litigant to attest that litigant's affidavit or sign an urgent certificate on their behalf, as such a lawyer "clearly has an interest in the matter at hand". The courts must guard against even the appearance of bias; justice must not only be done but be seen to be done. These authorities make it plain that the 'interest' which disqualifies a Commissioner of Oaths from attesting an affidavit is any involvement or advantage in the proceedings that compromises impartiality.

[4] In casu, Mr. Kapasura is a police legal officer actively involved in the matter on the respondents' side. He is not an independent commissioner. Attesting an affidavit for his employer in a dispute of this nature creates a direct conflict with the requirement of impartiality. I find, therefore, that the opposing affidavit was commissioned by a person with a substantial interest in the outcome, in violation of the clear rule against such practice. The irregularly commissioned affidavit is inadmissible and cannot be relied upon. Accordingly, the point in limine is upheld. The respondents' opposing affidavit is struck out. This means the application stands effectively as unopposed. Nevertheless, for completeness, I will address the merits of the matter and the points of law raised, since a court must still be satisfied that an applicant has made a case for relief even where an application is formally unoppose

[5] The applicant's case invokes his constitutional right to administrative justice under section 68 of the Constitution of Zimbabwe, 2013. Section 68(1) guarantees every person the

right to administrative conduct that is lawful, prompt, efficient, reasonable, proportionate, impartial, and both substantively and procedurally fair. Section 68(2) further provides that any person whose right to administrative justice has been adversely affected by administrative conduct has the right to be given promptly the reasons in writing for the conduct. This fundamental right is given effect through the Administrative Justice Act [*Chapter 10:28*] ("the AJA"). Section 3 of the AJA mirrors the constitutional standards, and section 4(1) of the Act entitles any aggrieved person to apply to the High Court for relief where an administrative authority has failed to comply with section 3. In short, the Constitution and the AJA impose a duty on administrative bodies to act lawfully and fairly, and importantly to act promptly in making and communicating decisions.

[6] In the present case, the Police Service Commission's handling of the applicant's appeal is an administrative act subject to section 68 and the AJA. The applicant argues that because he is enforcing a constitutional right to administrative justice (particularly the right to a prompt and fair decision on his appeal), his application should not be barred by technical time limits. The respondents, on the other hand, contend that the application is fatally out of time in terms of the High Court Rules, 2021. Rule 62(4) of these rules provides that

> "Any proceedings by way of review shall be instituted within 8 weeks of the termination of the suit, action or proceedings in which the irregularity or illegality complained of occurred: Provided that the court may for good cause shown extend the time.".

In this matter, the "proceedings" at issue is the internal police appeal process. The appeal was dismissed by the second respondent, and that dismissal is the decision the applicant seeks to bring on review.

[7] The timeline is pertinent. The applicant was informed of the dismissal of his appeal on a certain date (reflected in the record as 1 April 2025). Counting from that date, any application for review ought to have been filed within 8 weeks, unless leave for late filing was obtained. Eight weeks from 1 April 2025 expired on 27 May 2025. Yet the applicant only instituted these proceedings in mid-June 2025. That was beyond the 8-week window. Even accepting that the cause of action effectively arose when the applicant was notified (as opposed to the date the decision was made), the application still missed the deadline. No application for condonation or extension of time was filed, and no "good cause" for the delay has been formally placed before the court.

[8] The applicant's counsel urged that the strict time bar in Rule 62(4) should not apply because the applicant is asserting a constitutional right under section 68 – in other words, that the Constitution should trump a procedural rule. I am unable to agree with that proposition. While the Constitution is the supreme law, the manner of approaching the court to vindicate rights must still comply with procedural rules unless those rules themselves are shown to be unconstitutional or inapplicable. Here, the applicant chose to proceed by way of a review application under the High Court's review jurisdiction. Having done so, he is bound by the rules governing such applications, including the time-limit in Rule 62(4). The right to administrative justice does not automatically exempt a litigant from complying with procedural requirements. Indeed, section 68 and the AJA are complementary to the ordinary review process, not a substitute for it. The AJA itself contemplates that its remedies are "subject to…any other law", which would include the rules of court. Nothing in section 68 or the AJA abolishes the need to act timeously when seeking relief. On the contrary, the imperative of prompt administrative action cuts both ways – it expects administrators to act without undue delay, and it implicitly calls upon aggrieved persons to seek redress without undue delay as well, so that administrative decisions are challenged and resolved while still fresh and before prejudice accrues.

[9] The respondents cited the case of *Erica Ndewere* v *The President of Zimbabwe* CCZ 3/25 (2025) in support of their position. In that Constitutional Court matter, a removed High Court judge (Justice Ndewere) sought to challenge the President's action in removing her from office, alleging violations of her rights including the right to administrative justice. The Constitutional Court dismissed that application, emphasizing that a litigant who seeks to vindicate a constitutional right must do so with proper pleadings and clear identification of the impugned conduct and the constitutional obligations at stake. Justice Garwe, writing for the Court, underscored that an applicant cannot simply invoke a constitutional provision in the abstract; they must pinpoint the specific administrative conduct and demonstrate how it violates the right. The Ndewere case is distinguishable from the present one. It dealt with a unique situation of a presidential decision made under a special constitutional process (removal of a judge under section 187 of the Constitution). The court in *Ndewere* did not pronounce on the effect of Rule 62(4)'s time limit, because that was not the issue before it – instead, the focus was on the form and substance of a direct constitutional application. What *Ndewere* illustrates is that invoking section 68 does not give a litigant carte blanche to ignore

procedural rules; one must still follow the correct procedure and meet the necessary requirements when bringing a constitutional claim. In the present case, the applicant did not institute a direct constitutional application under section 85 of the Constitution; he proceeded by way of review. Accordingly, the time limitation in Rule 62(4) applies to his case. If he needed more time, the proper course was to seek condonation by explaining the delay – not to simply wave the banner of section 68. There is therefore no conflict between the Constitution and the rule in this scenario: the applicant's right to administrative justice can and should have been pursued within the framework of the rules, which provide ample opportunity (eight weeks, extendable for good cause) to do so.

[10] In sum, I find that the applicant's review was instituted out of time and, absent an application for extension, the matter is not properly before the court. On this ground alone, the application is liable to be dismissed. However, for completeness I will consider the substance of the applicant's grievances, assuming (in his favor) that the matter were properly before us.

Merits of the Application

[11] Because the opposing affidavit was struck out, the application is formally unopposed. This does not mean the applicant automatically prevails. The court still has a duty to examine the record and the applicant's founding papers to satisfy itself that a case for review has been made, especially since the remedy of review is discretionary. The applicant's main contention is that the dismissal of his appeal by the Police Service Commission was improper and should be set aside. He alleges that the appeal process was not fair – pointing to the delay in communicating the outcome, and suggesting that the decision might have been unreasonable or without basis.

[12] After reviewing the facts presented, I am not persuaded that any reviewable irregularity has been established. The record shows that the applicant was charged with misconduct and was discharged from the police after disciplinary proceedings. He exercised his right of appeal to the second respondent, the Police Service Commission. That appeal was considered and ultimately denied. While the applicant is aggrieved by the outcome, he has not demonstrated that the decision was reached in a manner that breaches the principles of administrative justice. There is no evidence of procedural unfairness such as bias, denial of a

hearing, or failure to consider relevant evidence. The applicant does not allege, for instance, that he was denied the opportunity to make representations in his appeal or that the tribunal was improperly constituted. He also has not pointed to any material error of law or fact, bad faith, gross unreasonableness, or other recognized grounds of review as enumerated in section 5 of the AJA. The AJA and common law allow this court to intervene if an administrative decision is shown to be illegitimate in one of various ways – for example, if the decision-maker acted without jurisdiction, or was influenced by bias or corruption, or made a decision so outrageous in its defiance of logic that no reasonable authority would have made it. No such factors have been proved here. The applicant's complaint essentially boils down to dissatisfaction with an adverse outcome and a delay in notification.

[13] On the issue of delay: It is true that the Commission took a notable amount of time (several weeks, by the applicant's account) to inform him of the dismissal of his appeal. Administrative authorities are obliged by section 68 and the AJA to act *promptly* and within a reasonable time. An unreasonable delay in reaching or communicating a decision can violate the affected person's rights. However, not every delay will warrant the court's intervention. In this case, the delay, while unfortunate, has not been shown to prejudice the applicant's rights in a manner that would justify setting aside the decision. The appeal decision *was* ultimately made and communicated to him (albeit later than expected). The applicant has already received the substantive answer to his appeal. The horse has effectively bolted – one cannot rewind the clock and decide the appeal faster after the fact. The appropriate remedy for undue delay would typically be an order compelling a decision within a specified timeframe (had the decision still been pending) or possibly an award of costs if the delay was egregious. Here, by the time the applicant approached this court, he had the decision in hand. There is no suggestion that the delay itself rendered the outcome substantively wrong or suspect. In fact, the applicant does not contend that the Commission failed to consider his case or that new irrelevant factors crept in due to the lapse of time. Thus, while the delay in notifying the applicant is regrettable and not in keeping with the ideal of prompt administrative action, it does not, on the facts of this case, amount to a reviewable irregularity that would vitiate the decision already made.

[14] Regarding the substance of the Commission's decision, the applicant has not furnished this court with sufficient grounds to impugn it. It is not the function of this court on review to

substitute its own decision for that of the administrative authority merely because the applicant is unhappy with the result. The court's role is to ensure the decision was arrived at lawfully and fairly. The burden is on the applicant to establish a gross error or injustice in the proceedings. That burden has not been discharged. Absent any indication of illegality, irrationality, or procedural impropriety, there is no basis for this court to disturb the decision of the second respondent. In fact, with no contrary evidence or argument from the struck-off opposition, the record of the disciplinary proceedings and appeal (which the applicant placed before the court) must speak for itself – and nothing on the face of that record suggests an obvious miscarriage of justice. The charges against the applicant, the findings at the disciplinary hearing, and the reasons (if any) given by the Commission for upholding those findings have not been shown to be irrational or unlawful. Therefore, even if the matter were considered on its merits as an unopposed application, the applicant has not made out a case for the relief he seeks.

Conclusion and Disposition

[15] The preliminary objection has been upheld, meaning the respondents' opposition falls away. In the result, the application has been treated as unopposed, but the court, having reviewed the matter, is not satisfied that the applicant is entitled to the relief sought. The application was filed out of the time prescribed by the rules and no condonation was obtained, rendering the matter improperly before the court. Even overlooking the technical time-bar, the application fails on the merits for lack of any demonstrable reviewable irregularity in the respondents' conduct. It is an established principle that in the exercise of its review jurisdiction, the High Court may decline to entertain an application that is not procedurally compliant or that discloses no basis for intervention. For all the foregoing reasons, the application cannot succeed.

Accordingly, the application for review is hereby dismissed.

The applicant shall bear the costs of this application, on the ordinary scale.

MAMBARA J……

Mugiya Law Chambers, applicant's legal practitioners
Civil Division, respondents' legal practitioners